

RESOLUTION OF RIGHTS PROCEDURE

Having reviewed the complaint registered on September 8, 2023, with this Agency and having carried out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: On September 8, 2023, a complaint was received by this Agency from Ms. A.A.A. (hereinafter, the complainant) against CAIXABANK, S.A. (hereinafter, the respondent) for not having properly addressed her right to rectification.

The complainant sent an email to the respondent requesting the rectification of data as she is being claimed for a debt of a third party, from a company of which she is no longer an administrator.

The respondent, after requesting her to provide some of those claims, informed her that they were investigating the case, and subsequently, on August 2, 2023, stated "(...) We inform you that your complaint has been addressed and the necessary measures have been taken to prevent the recurrence of the situation you reported."

On August 31, 2023, the complainant received an email from the entity DXC addressed to "Pazo de Robledo, S.L." claiming a debt on behalf of Caixabank.

SECOND: On November 10, 2023, the complainant submitted a new document to this Agency providing a copy of an SMS received indicating that "(...) your account (...) of Caixabank Payments & Consumer E.F.C., E.P.S.A.U. has been acquired by LC ASSET 2 S.A.R. which in turn has entrusted Link Finanzas with the collection management."

THIRD: In accordance with Article 65.4 of the LOPDGDD, the aforementioned complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

There is no record in this Agency that the respondent has submitted any response.

FOURTH: The result of the transfer procedure indicated in the previous Fact did not allow for the understanding that the complainant's claims were satisfied. Consequently, on December 8, 2023, for the purposes provided for in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection agreed to admit the complaint for processing.

The aforementioned agreement granted the respondent a hearing period, so that within ten working days, they could submit any arguments they deemed appropriate.

The respondent states that due to an error, they did not respond after receiving the transfer of the complaint made by this Agency.

Regarding the complaint, they indicate that

"(...) (i) On June 6 of this year, the Complainant contacted CaixaBank to indicate the fact subject to the complaint, as previously mentioned. (...).

(ii) Once the identification requirements were rectified, and documentation was provided confirming that she was no longer an administrator of the company Pazo de Robledo S.L., as well as her written statement of absence of relationship with it, the Office of the Data Protection Delegate initiated the appropriate actions (interlocution with the office and interlocution with our internal department of Delinquency) to manage the aspects pointed out by the Complainant. Upon completion of these procedures, it was duly informed that her request had been addressed (Annex Document 2).

(...)

(iv) Finally, it should be noted that regarding the communication received from the company DXC, a few days after the handling of her complaint by the Office of the Data Protection Delegate, it is due to the process of updating the database by the collection company. (...)

(v) The complainant has been informed in the manner previously indicated, in the letter attached as Annex Document 3, sent by certified mail with acknowledgment of receipt."

The respondent provides a copy of the letter sent to the complainant dated January 4, 2024, in which it states that "In relation to your request and after the related actions, we inform you that the AEPD has

requested us regarding a complaint of yours in which you indicate that CaixaBank claims a debt associated with a company (Pazo de Robledo, S.L.) with which you no longer have a relationship, we must inform you that in our systems there is no linkage of your data to the aforementioned company.”

FIFTH: After examining the document submitted by the respondent, it is forwarded to the complainant, so that, within ten working days, she may formulate any arguments she considers appropriate.

The complainant has indicated that:

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- “- On 12/09/2023, I received an email from CaixaBank indicating that they had addressed my complaint and taken the necessary measures to prevent the recurrence of the situation.
- On 23/10/2023, I received an SMS from Link Finanzas informing me that LC ASSET 2 SARL had acquired the credit and that they were managing the collection. They demanded payment from me.
- In the following days, I received numerous phone calls demanding payment.
- On 22 November, I received an email and an SMS threatening to include me in ASNEF. On the same day, I sent them an email requesting contact with the data protection officer of Link Finanzas.
- Despite having initiated this complaint, the calls demanding the debt continued.
- On 11/12/2023, I received an acknowledgment of receipt of my complaint. On 12/12/2023, they requested more documentation.
- Finally, on 26/12/2023, they communicated the acceptance of the deletion.”

The claimant requested Link Finanzas to delete their data via email dated 22 November 2023. After the claimant provided that entity with a copy of their ID and a copy of the complaint filed with this AEPD, Link Finanzas, on 20 December 2023, responded that “(...) We proceed to the preventive limitation of the data pending confirmation from CaixaBank regarding what you indicate. If CaixaBank confirms to us, we will proceed to the immediate deletion of your data from our databases and will communicate it.”

On 26 December 2023, Link Finanzas responded to the claimant that “We attach the response to the exercise of your right to deletion.”

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of the LOPDGDD, the Director of the Spanish Data Protection Agency is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: “The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures.”

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II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Data Protection Agency is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among controllers and processors regarding their obligations, as

well as addressing complaints filed by a data subject and investigating, as appropriate, the reasons for them.

Correspondingly, Article 31 of the GDPR establishes the obligation of controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have designated a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with that authority.

In accordance with this regulation, following the procedure established in Article 65.4 of the LOPDGDD, prior to the admission of the complaint regarding the exercise of the rights regulated in Articles 15 to 22 of the GDPR, which gives rise to this procedure, it was forwarded to the respondent for analysis, to respond to this Agency within one month, and to prove that they had provided the claimant with the appropriate response.

The result of this forwarding did not allow for the understanding that the claimant's requests were satisfied. Consequently, on 8 December 2023, for the purposes provided for in Article 64.1 and 65 of the LOPDGDD, the complaint filed was admitted for processing. This admission for processing determines the opening of the present procedure for failure to address a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

“When the procedure refers exclusively to the failure to address a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of 27 April 2016, it shall be initiated by an admission agreement, which shall be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure shall be six months from the date on which the claimant was notified of the admission agreement. After this period, the interested party may consider their complaint accepted.”

Article 58.2 of the GDPR grants the Spanish Data Protection Agency a series of corrective powers for the purpose of correcting any infringement of the GDPR, including “ordering the controller or processor to address the requests for the exercise of the rights of the data subject under this Regulation.”

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III

Rights of Individuals Regarding Personal Data Protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights include access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability.

The formal aspects related to the exercise of these rights are established in Article 12 of the GDPR and Article 12 of the LOPDGDD.

Additionally, the provisions expressed in Recitals 59 and following of the GDPR are taken into account.

In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and must state its reasons if it does not intend to comply with such request. The burden of proof regarding compliance with the duty to respond to the request for the exercise of rights made by the affected party lies with the data controller.

The communication addressed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

IV

Right to Rectification

Article 16 of the GDPR, which regulates the right to rectify inaccurate personal data, establishes the following:

"The data subject shall have the right to obtain from the controller without undue delay the rectification of inaccurate personal data concerning him or her. Taking into account the purposes of the processing, the data subject shall have the right to have incomplete personal data completed, including by means of a supplementary statement."

V

Conclusion

In the present case, it has been established that the complainant requested the rectification of their data from the respondent as they were being pursued for a debt from an entity of which they are no longer a part. The respondent, on August 2, 2023, replied indicating that "(...) We inform you that your complaint has been addressed and the necessary measures have been taken to prevent the recurrence of the situation you reported."

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Notwithstanding the above, the complainant received an SMS informing them that "(...) your account (...) with Caixabank Payments & Consumer E.F.C., E.P.S.A.U. has been acquired by LC ASSET 2 S.A.R. who has in turn entrusted Link Finanzas with the management of the collection" and several communications demanding payment of the debt.

Therefore, the complainant contacted Link Finanzas requesting that they cease processing their data in relation to said debt, and after providing a copy of their ID and the complaint filed with this Agency, they were informed that "We proceed to the preventive limitation of the data pending confirmation from Caixabank regarding what you indicated. If Caixabank confirms this to us, we will proceed to the immediate deletion of your data from our databases and will communicate this."

On December 26, 2023, Link Finanzas responded to the complainant stating that "We attach the response to the exercise of your right to erasure."

In the case analyzed here, although it is true that the respondent replied to the complainant indicating that they were addressing their right, the fact is that the complainant continued to receive demands from Link Finanzas, the entity responsible for managing the collection on behalf of the company that purchased the debt from the respondent, to pay the debt.

During the processing of this procedure, on January 4, 2024, the respondent sent a letter to the complainant indicating that "In relation to your request and following the related actions, we inform you that the AEPD has requested us regarding a complaint of yours in which you indicate that Caixabank is claiming a debt associated with a company (Pazo de Robledo, S.L.) with which you no longer have a relationship; we must inform you that there is no linkage of your data to the aforementioned company in our systems."

Consequently, it is appropriate to uphold, for formal reasons, the complaint submitted as the right has been fully addressed during the processing of this procedure without requiring additional actions by the data controller to issue a new certification regarding the attention to the right having been addressed late.

Having seen the cited provisions and others of general application, the Director of the Spanish Data Protection Agency RESOLVES:

FIRST: TO UPHOLD for formal reasons, the complaint filed by Ms. A.A.A. against CAIXABANK, S.A. However, a new certification by the respondent is not required, as the right has been addressed late, without requiring additional actions by the data controller.

SECOND: TO NOTIFY this resolution to Ms. A.A.A. and to CAIXABANK, S.A.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

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Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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